

San Mateo Police Department



200 Franklin Parkway
San Mateo, CA 94403-1921
Telephone: 650-522-7620
FAX: 650-522-7601
www.cityofsanmateo.org

August 26, 2026

Brian C.

RE: Public Records Act Request #W013260-081726

Dear Brian,

In accordance with Government Code § 7922.525, a legal review of your request was completed. Any redactions or exemptions cited in the response were determined and authorized by the signatory of this letter. The following letter is in response to your request submitted under Reference # W013260-081726.

This letter responds to your California Public Records Act ("CPRA") request dated August 17, 2026, in which you seek the following items:

1. Each memorandum to the Chief of Police documenting a quarterly audit of ALPR data searches by external CA public agency users under Policy 463.10, for each quarterly period that has ended since December 22, 2025 under the quarterly schedule the Department applies — whether calendar quarters, quarters measured from the policy's effective date, City fiscal-year quarters, or another schedule.

Department Response:

Responsive records are available for review within the portal. December 2025-March 2026 Audit memos were submitted under your request #W012461-040226.

2. Any record establishing or describing the quarterly schedule or audit calendar applied under Policy 463.10 — for example, an audit calendar, scheduling or tasking record, or assignment to the ALPR Committee Captain or an authorized designee.

Department Response:

The Department has no responsive records.

3. For each audit in item 1, the record identifying the external CA public agencies whose searches were reviewed, including any list of the Department's network-sharing partners in effect during the audited period.

Department Response:

The records you seek are contained in the audit logs from the San Mateo Police Department's Automated License Plate Reader ("ALPR") system. Specifically, you have requested records reflecting searches conducted by an outside law enforcement agency accessing the Department's ALPR data through the Flock Safety network sharing platform.

The requested records, in their entirety, are exempt from disclosure pursuant to Government Code § 7923.600, Government Code § 7922.000, Evidence Code § 1040, and Civil Code § 1798.90.55.

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by a law enforcement agency in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency's ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.

Automated License Plate Reader (ALPR) Exemption (Civil Code § 1798.90.55).

Your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

In addition, the Flock Platform does not display the names of officers from external agencies on our portal. Any such information, if available, must be requested directly from the originating agency.

Our internal search history is being provided to you on a rolling basis under Request W012541-041426, in addition to the current live spreadsheet available through our transparency portal, which can be accessed here: [Flock Safety - San Mateo CA PD Transparency Portal](#). Please note that this is our internal search history which has been made publicly available, not the search history of external agencies.

4. For each audit in item 1, records sufficient to identify the "associated documentation" filed and retained under Policy 463.10 — for example, the file names, export or report dates, covering date ranges, and source platform of the platform exports, network audit reports, or search logs the auditor reviewed. This item seeks identification of the retained documentation, not production of the underlying exports themselves.

Department Response:

The records you seek are contained in the audit logs from the San Mateo Police Department's Automated License Plate Reader ("ALPR") system. Specifically, you have requested records reflecting searches conducted by an outside law enforcement agency accessing the Department's ALPR data through the Flock Safety network sharing platform.

The requested records, in their entirety, are exempt from disclosure pursuant to Government Code § 7923.600, Government Code § 7922.000, Evidence Code § 1040, and Civil Code § 1798.90.55.

Investigatory Records Exemption and Investigative Files Exemption (Government Code § 7923.600).

The requested audit records reflect search activity conducted by a law enforcement agency in connection with criminal investigations. Each log entry documents the existence, timing, and nature of an investigative act by another agency, including the category of criminal offense under investigation and the time frame of the search. Disclosure of these records would reveal confidential investigative activity. These records are therefore exempt from disclosure as investigatory records compiled by a law enforcement agency for law enforcement purposes pursuant to Government Code section 7923.600.

In addition, the audit log entries at issue reflect the investigative decisions and activities of other law enforcement agencies, not those of the San Mateo Police Department. The Department is not the originating agency for these investigative records and is not in a position to assess whether disclosure would compromise another agency's ongoing or pending investigations.

Public Interest Balancing Test (Government Code § 7922.000).

Even to the extent any portion of the requested records might not fall squarely within a categorical exemption, the Department withholds these records under the public interest balancing test set forth in Government Code section 7922.000. The audit logs contain a combination of data fields that, taken together, would allow identification of specific criminal investigations being conducted by specific agencies during specific time periods. The public interest served by nondisclosure — protecting the integrity of active and pending criminal investigations across multiple jurisdictions — clearly outweighs the public interest served by disclosure.

Official Information Privilege (Evidence Code § 1040).

The requested records constitute official information acquired by law enforcement personnel in confidence. Disclosure of the investigative search activity of other agencies would be against the public interest because there is a necessity for preserving the confidentiality of this information that outweighs the necessity for disclosure in the interest of justice. Revealing which agencies are searching for which categories of criminal activity, and when, would compromise investigative strategies and techniques across multiple law enforcement jurisdictions.

Automated License Plate Reader (ALPR) Exemption (Civil Code § 1798.90.55).

Your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

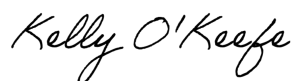
In addition, the Flock Platform does not display the names of officers from external agencies on our portal. Any such information, if available, must be requested directly from the originating agency.

Our internal search history is being provided to you on a rolling basis under Request W012541-041426, in addition to the current live spreadsheet available through our transparency portal, which can be accessed here: [Flock Safety - San Mateo CA PD Transparency Portal](#). Please note that this is our internal search history which has been made publicly available, not the search history of external agencies.

5. Records reflecting the Chief of Police's review of each item 1 memorandum and its subsequent filing and retention, with dates. This item seeks transmittal, routing, review, or filing records associated with the memoranda themselves; it does not ask for review of any general email corpus.

Department Response:

No responsive records, all acknowledgements were made via email corpus.



Kelly O'Keefe
Police Technical Services Administrator

